

Ghiglia: "The Deepfake Danger, It's Time for Digital Civic Education"

The DSA represents an important step forward in the fight against deepfakes and online misinformation, but its effectiveness will depend on a coordinated approach that includes strict laws, international collaboration, corporate accountability, and user education. Only in this way can a safe and reliable digital environment be built.

Intervention by Agostino Ghiglia, member of the Italian Data Protection Authority
(AgendaDigitale, March 25, 2024)

The evolution of technologies related to generative artificial intelligence, such as deepfakes, has led the European Union to take concrete measures to protect its citizens by seeking to ensure a safe and transparent digital environment. One of these measures is the Digital Services Act (DSA): the Regulation aimed at regulating digital services and online platforms operating in the EU.

However, it will not be sufficient on its own to create a safe online environment for all: for this to happen, a collective effort is needed, involving companies and educational institutions, including the introduction of digital civic education as a subject of study from the early school years.

But let's take it step by step, starting with the legislative efforts made by the EU.

****The DSA Obligations for Online Platforms****

The DSA imposes a series of obligations on online platforms, particularly regarding, among others, the removal of illegal content, transparency on profiling, protection of users' fundamental rights, transparency of online advertising operations, and the provision of measures to prevent the spread of misinformation.

Specifically regarding the fight against deepfakes based on the DSA, in recent weeks, the European Union has sent requests for information to major platforms such as Bing, Google Search, Facebook, Instagram, Snapchat, TikTok, YouTube, and X, to learn what measures they have adopted to mitigate the risks of "malicious" use of generative AI; measures useful for identifying, reporting, and removing falsified content that may cause harm to users or society. It follows that platforms should equip themselves with more tools for detecting deepfakes, verifying sources, and promoting greater transparency regarding the artificial nature of content.

The EU initiative represents a significant step, albeit not a definitive one, in relation to the growing scale of the generative AI market, which involves thousands of companies, startups, and creators, in addition to the technology giants. This growing and varied landscape makes it particularly complex for regulators to monitor and understand the market in order to effectively mitigate the risks associated with deepfakes and other applications of generative AI.

****The Most Obvious Examples of Deepfake Risks****

Some past examples remain paradigmatic today to highlight the potential dangers that deepfakes can represent. A well-known case, now prehistoric as it dates back to 2018, is that of a fake video created by actor and director Jordan Peele to highlight the risks of deepfake technology, featuring then-President of the United States, Barack Obama. Although it was intended at the time as a prescient educational exercise, the video demonstrates, without overly alarming either experts or the general population, how deepfakes could already be used to create misleading or harmful political messages.

Another famous example, from 2019, is the fake video of Facebook CEO Mark Zuckerberg (still at the center of the Cambridge Analytica scandal at the time) stating: "I owe everything to Spectre, Spectre showed me that whoever controls the data controls the future." The video, although fake, raised some reactions and concerns regarding privacy, trust in tech companies, and their power. In this case, the truly fake element is the infamous criminal organization already an enemy of 007, Spectre, while it is a fact that Meta—and other gatekeepers—has had (and effectively controls) billions and billions of data related to considerable parts of its users' public lives for years, and that thanks to this, it has developed a huge business whose future developments are still unknown.

From fake to fake, we have arrived at the present day with the fake phone calls of President Joe Biden to voters in New Hampshire, and the number of defamation campaigns via deepfake videos is countless, as is the use of their cousins, fake news, with devastating impacts on the reputation and

personal safety of victims. One fact appears to be established: deepfake, from an isolated attack for humorous purposes, is transforming into a mass phenomenon, used to frame or defame prominent figures and dissidents, but it could soon enter our homes, spread among ordinary people, and, transforming into deepnude and more, undermine human rights, freedom of expression, and individuals' privacy.

****What is Needed to Curb the Growing Problem of Deepfakes****

In my opinion, to curb the growing problem of deepfakes, a dynamic and adaptable approach is needed, a new and multifaceted vision of society and, as much as possible, of the law, that involves all parties at play. A "flexible" regulatory framework is necessary, along with cooperation among... the private sector and regulatory authorities through essential and effective international collaboration. The deepfake phenomenon, in fact, is a global issue (like everything in the digital age) that knows no boundaries, and therefore, responses must be coordinated at an international level. Any other initiative risks being partial and inadequate.

****Development and Standardization of Digital Watermarking Technologies****

The development and standardization of digital watermarking technologies, which can certify the authenticity of a video or an image, could represent a help against deepfakes, but systematic and organized large-scale dissemination currently appears to be decidedly problematic.

****Digital Awareness in School Curricula****

The fight against deepfakes, as reiterated on other occasions, also presupposes public education and training, albeit in a - in my opinion - necessary prospective dimension. Awareness campaigns and broad educational programs about the new digital world can help people develop a new awareness, including recognizing deepfake content. This includes integrating digital awareness into school curricula and promoting media literacy initiatives. Excessive measures? Perhaps, but when we explore the overly simple and accessible tools available on search engines and apps that can create deepfakes, we cannot help but feel concerned.

****Collaboration Among Legislators, Platforms, Security Experts, and Civil Society****

If, therefore, the Digital Services Act marks a significant step towards regulating digital services and mitigating the risks associated with deepfakes, to implement truly effective initiatives, the EU - through the DSA - must carry out constant monitoring and pursue an adaptation of policies in this area to adequately respond to the evolution of technology and disinformation tactics. All of this requires close collaboration among legislators, technology platforms, cybersecurity experts, and civil society, and it is important that this process is transparent and widely disseminated in the media. Given the aforementioned transnational nature of the Internet and digital platforms, it is also essential that the EU engages globally in favor of developing common standards and regulations. Only the harmonization of laws and regulatory practices at a global level can prevent the creation of "digital havens" where deepfake creators operate undisturbed.

****Proactive Collaboration of Companies****

Another fundamental pillar in the fight against deepfakes is the proactive collaboration of companies. In addition to complying with legislation, platforms and technology companies should take on the ethical responsibility of combating deepfakes and other forms of disinformation. Such activities should include investments in detection technologies that make verification processes more rigorous and provide greater support to victims of disinformation.

****User Education****

No less important is user education. An informed society is the best defense against deepfakes and disinformation. As trivial as it may sound, it is difficult to achieve. There should be massive campaigns to inform citizens not only to help them recognize falsified content but, above all, to understand the ethical and social implications of AI-based technologies. Awareness campaigns should aim to build a digital culture based on constructive skepticism, ethics, and individual responsibility.

****The Need to Balance Controls and Freedom of Expression****

The Digital Services Act represents an important step forward in the fight against deepfakes and online

disinformation, but its effectiveness will depend on a coordinated approach that includes strict laws, international collaboration, corporate accountability, and user education. Only through a collective and multidimensional effort can we hope to address the challenges posed by deepfakes and build a safe and reliable digital environment for all. In this context, it is essential to emphasize that any control and verification mechanism introduced to combat the spread of deepfakes and disinformation must be carefully balanced to respect freedom of speech and thought. Regulation should not become a pretext for censorship or unjustified limitation of public debate. Freedom of expression is a fundamental pillar of democratic societies, and any initiative aimed at ensuring digital security must protect this right while ensuring that disseminated information is not harmful or misleading.

****The Importance of Digital Civic Education****

What is, as a prerequisite to the above, the assumption not only of the fight against deepfakes but, more generally, of the development of new "onlife" models aimed at supporting us and future generations in the era of the digital revolution? In my opinion, the assumption, already reiterated several times, is that digital civic education should be included as a subject of study from the very first cycle of schooling. In an era characterized by rapid technological changes and the pervasiveness of digital media, it is crucial that young generations are raised not only with technical skills necessary to navigate the digital world but also educate them towards a critical approach that enables them to evaluate information and sources independently and consciously. Digital civic education should not be limited to the safe and responsible use of technology but should also include a deep understanding of digital rights, ethical issues, and the social impacts of emerging technologies. By educating and instructing from a young age, we can hope to form informed, responsible, and critical citizens, capable of facing the opportunities and pitfalls of the digital age.

Conclusions

In conclusion, while the Digital Service Act and other legislative initiatives are important steps in the right direction, success in the fight against deepfakes and misinformation, and more generally, the creation of a collective awareness regarding the digital age, will require a collective commitment that goes beyond mere regulation. An approach that integrates respect for freedom of expression, international cooperation, corporate responsibility, and, above all, digital civic education, to build a more resilient and informed society. Deep fight vs Deep fake, in short.